

DEPARTMENT OF THE NAVY
NAVSUP WSS
5450 Carlisle Pike | PO Box 2020 | Mechanicsburg, PA 17055-0788

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Mechanicsburg		Type	A1	
Folder #		232301488		PD #	N0010423XA293	
Item Manager	Buffington, Danell	Work Function	Planner	Phone		Code
						N96163
Technician	Metz, Koby	Work Function	Reprocurement Technician	Phone		Code
						N96
Buyer	Pennartz, Adam	Work Function	Contract Specialist	Phone		Code
						N7M2.5

2. Description of the Action Being Approved

Description	Negotiation and award of a contract through other than full and open competition.
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3. Description of Supplies/Services

This J&A covers the acquisition of the following

☒ Spares ☐ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature	CIRCUIT CARD ASSEMB			Quantity	52
NSN	7HH 5998 012346892			Cage Code	
P/N	5543728			Unit Price	\$15,795.00
Option	N	Option %	Days		
Estimated Value	\$821,340.00				

Ship To

Period of Performance: Expected Final Delivery Date 10/05/2023

Line of Accounting

97 00 XX XX 4930 NC1A 000 81004 0 050120 7R 000000 8PMC00000000
Ship 26 to W25G1U Ship 26 to W62G2T

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC R

The Government does not own the data or the rights to the data needed to purchase / contract repair of this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture/repair this item, A/RMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture/repair this item, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

Raytheon Co. - (15090) Based on the market research performed by the technical advocate, it is concluded that the only sources of procurement is Raytheon Co. - (15090). The Government does not own the data, or the rights to the data needed to openly compete this procurement requirement. Only the source listed above, who is the OEM, maintains the design and manufacturing standards via design drawings, manufacture procedures, and quality assurance procedures. There are no authorized substitutes of this item as this is the only item known to meet performance and compatibility requirements. Furthermore, NAVSUP WSS does not have sufficient data to support an open and full competition. The item has to be tested and qualify within approved testing specifications procedures, embedded coding procedures, design protocols, and internal QA requirements. Market research did not reveal or identify any known distributors.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsized on the government-wide point of entry on

10/05/2023

and as a result

No other entities expressed interest.

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

Raytheon (15090) A technical review, which consisted of searching several Government databases including ITIMP, FLIS and ERP, has been completed on this item. Search criteria included Part Number, Design Control Activity, Cage Code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding, recorded approved sourced of supply, historical sources of repair and past contracts. Based on this market research the contracting officer has determined that the only known sources of procurement is Raytheon Co. - (15090). If a company other than the ones listed believes that they have a compatible product, they can submit the item to the Engineering Program Office, to include research and development, drawings and test specifications. The program office may test and evaluate the item at the company's expense, when appropriate. Upon qualification, the approved company will be able to participate in current or future solicitations. ITIMP- Reviewed award history and other potential sources of supply, AMC/AMSC code, part number, CAGE code. NSEDR - Reviewed applicable drawing to this item. ERP - Search criteria included part number, NSN, Nomenclature, AAC, Criticality Coding. ISEA - Confirmed that there is no engineering support required at this time. FLIS- Search criteria included part number, design control activity, Cage code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding which all matched with ITIMP. Market research did not reveal, or identify any known distributors.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

To promote competition, NAVSUP WSS will continue to encourage vendors with the expertise to manufacture/repair the subject item to submit a complete technical data package for review and source approval by the appropriate engineering source approval authority per the (WSS) guidelines. Also, future requirements will be advertised on the government-wide point of entry. For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A

No Previous J&A - Previously awarded under the SAT

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By	Koby Metz	Work Function	Reprocurement Technician	Created Date	10/05/2023
					10/05/2023

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature	Koby Metz	Work Function	Reprocurement Technician	Requirements Cognizance Signature Date	10/05/2023

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature	Danell Buffington	Work Function	Planner	Technical Cognizance Signature Date	10/05/2023

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature	Sarah Ream	Work Function	Contract Specialist	Contracting Officer Certification Signature Date	11/13/2023

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition Advocacy Review And Concurrence Signature	Adam Johnson	Work Function	Competition Advocate	Competition Advocacy Review And Concurrence Signature Date	11/14/2023

I certify that this J&A is legally sufficient to the best of my knowledge and belief

Legal Sufficiency Review Signature	Susan Whitley Newburg WHITLEY	Work Function	Attorney	Legal Sufficiency Review Signature Date	11/14/2023

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Approval Required
By Far 6.304
Signature

John Sweeney Work Function
[Redacted]

Competition
Advocate

Approval Required
By Far 6.304
Signature Date

11/17/2023